

**SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF BRONX** X

THIERNO S. DIALLO

Index No. **29977/2020E**

Plaintiff,

ECF
Amended Complaint

-against-

**Plaintiff Designates Bronx
 County as the Place of Trial**

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, AND POLICE OFFICER, CLARENCE BROWN, SHIELD No. 19647, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY, AND POLICE OFFICER JOSEPH LOBB, SHIELD No. 21087, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY, AND SERGEANT BRIAN MARTIN, SHIELD No. 5506, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY.

Jury Trial Demanded

Defendants,

X

Plaintiff, Thierno S. Diallo, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officers Brown and Lobb in their individual and official capacity.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in their unreasonable and unlawful search, seizure of the Plaintiff, Mr. Thierno Diallo which occurred on or about November 1, 2019, inside Mr. Diallo's residence located at 1640 Grand Ave, Apt 1A, Bronx, New York 10453.

2. Defendants, Police officers Brown and Lobb, knowingly and willfully in deliberate indifference to Plaintiff's Constitutional rights engaged in a pattern of abuse against the Plaintiff which cause Mr. Diallo to be seized and deprived of his liberty without probable cause or legal justification.

3. Mr. Diallo was inside his residence on the morning of November 1, 2019, at 12:30 am when the Defendant officers, in uniforms with their weapons holstered, banged repeatedly on Plaintiff's door demanding to be allowed inside Plaintiff's residence.

4. Mr. Diallo had just returned home from his job as a Direct Support Assistant with the State of New York and had begun to pray when he heard a loud knock on his door.

5. The noise heard by Mr. Diallo was so loud that Plaintiff became frighten and feared for his life which caused Plaintiff to call 911 for police assistance.

6. Mr. Diallo, under threat and intimidation allowed the officers to enter his apartment.

7. The officers then enter Plaintiff's bedroom without consent and demanded that the Plaintiff give the officers keys to one of the rooms inside Mr. Diallo's apartment.

8. The Defendant police officers ordered Mr. Diallo to give them keys to a room inside Plaintiff's apartment that was locked. Neither officer had a warrant to search Plaintiff's home.

9. The officers placed Mr. Diallo in handcuffs and walked him outside of his apartment in full view of several neighbors who became aware of the police presence and observed Mr. Diallo in handcuffs.

10. Plaintiff was taken outside his home where Sergeant Martin intervene and spoke with the two Defendant officers, Brown and Lobb.

11. Mr. Diallo was given a desk appearance summons for violating Administrative Code Section 26-521 Unlawful Eviction.

12. On or about January, 2020, Mr. Diallo appeared in Criminal Court City of New York to respond to the citation issued by the Defendant officers.

13. The Clerk of the Criminal Count informed Mr. Diallo that his case was not on the Court's calendar because his case had been dismissed.

14. Plaintiff Thierno Diallo now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law for the violations of his constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION AND VENUE

15. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the Bronx, and State of New York.

16. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

17. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated under 42 U. S. C. Section, 1983.

18. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the Bronx, and of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

19. Plaintiff, Thierno Diallo is a thirty (3) year old African American who is employed by the State of New York as a direct support assistant working in the Office for People with Developmental Disabilities.(OPWDD), who at all relevant times herein was and still remains a resident of the County of the Bronx, State of New York and is a citizen of the United States.

20. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

21. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

22. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

23. That at all times relevant herein, Defendants Police officers Brown, Lobb, and officer Martin, were duly appointed as police officer of the New York City Police Department and were directly involved in the incident underlying this lawsuit. The officers are believed to be assigned to the 46th precinct located at 2120 Ryer Ave. Bronx, New York 10457.

24. That the Defendant police officers were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

25. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

26. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

27. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

28. That at all relevant times, the individual police officers involved in this incident acted under the color of state law.

29. At all times relevant herein, the police officers involved in the underlying incident were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

30. That at all times mentioned herein, Defendants police officers Brown, Lobb and Martin, are currently employed by the New York City Police Department as police officers believed to be assigned to the 46th police precinct.

JURY DEMAND

31. Plaintiff demands trial by jury.

NOTICE OF CLAIM

32. On or about Friday, November 1, 2019, at approximately 04:58 am, Mr. Diallo after being terrorized by officers Brown, Lobb and Martin, immediately filed a complaint against the officers by filing a Notice of Claim addressed and acknowledge by the Comptroller of the City of New York.

33. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police

Department and police officers Brown, Lobb and Martin in compliance with General Municipal Law Section 50-h.

34. On January 13, 2020, the Comptroller of the City of New York acknowledge receipt of Mr. Diallo's timely filed Notice of Claim by assigning claim number 2020PD001085.

35. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

36. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

37. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

38. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

39. That by reason of the foregoing, Plaintiff, Thierno Diallo has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

40. Mr. Diallo was inside his residence on the morning of November 1, 2019, at 12:30 a. m. when he heard loud knocking at his door.

41. Mr. Diallo had just returned home from his job as a Direct Support Assistant with the State of New York and had begun to pray when he heard knocks on his door by unknown individuals.

42. The knocks were so loud that Plaintiff became frighten and feared for his life.

43. The individuals knocking at Mr. Diallo's door failed to identify themselves causing Plaintiff extreme anxiety.

44. Fearing for his life, Mr. Diallo, a devoted Muslim called 911 for police assistance.

45. As Plaintiff waited inside his home for the police, the knocking ceased.

46. Mr. Diallo looked outside his window and saw a New York City Police Department marked motor vehicle parked on the street of his residence..

47. Mr. Diallo, under threat and intimidation allowed the officers to enter his apartment.

48. Mr. Diallo left his apartment to greet the police officers whom he believed were the officers dispatched by the 911 operator.

49. Plaintiff approached the officers, Brown and Lobb and told the officers that he had called 911 because someone had been knocking at his door.

50. The officers informed Plaintiff that they were the individuals who had been knocking on Plaintiff's door.

51. The Defendant officers, Brown and Lobb told Mr. Diallo that they wanted access to his apartment. "We've been looking for you and we got to get inside your apartment"!

52. Mr. Diallo, under duress, allowed the officers to come inside his apartment.

53. The officers entered Plaintiff's apartment and brought along Plaintiff's former roommate, Adama Cisse, whom Mr. Diallo had evicted from his residence.

54. As Officers Brown and Lobb entered Plaintiff's apartment, the officers demanded the Plaintiff give the officers the keys to a room inside Mr. Diallo's apartment that was locked.

55. Mr. Diallo did not knowingly or willingly give the officers consent to search his residence.

56. The officers did not have a warrant to authorized a search of Plaintiff's apartment.

57. The officers exhibited aggressive behavior toward Mr. Diallo by their gestures and loud demanding voices which made Plaintiff nervous and caused Plaintiff to fear for his safety and welfare if he refused to give the officers the keys to his apartment.

58. Scarred and nervous by the officer's actions and threats and intimidation, Mr. Diallo started to look for the keys to the room that was locked.

59. Plaintiff could not immediately locate his keys because he was extremely nervous and afraid of the police officers inside his residence.

60. Officers Brown and Lobb then barged into Mr. Diallo's bedroom without consent and began to demand that Plaintiff give the officers the keys to the room that Mr. Diallo had previously locked.

61. Mr. Diallo felt compelled to find the keys to give to the officers due to the officer's orders and demands.

62. Mr. Diallo told the officers that "I'm trying to find the keys but your making me feel so nervous that I don't know where to look"!

63. Officer Brown the threatened Mr. Diallo that "If you don't find the keys, you're going to jail"!

64. Officer Brown than suggested to his partner, police officer Lobb, that Plaintiff should be handcuffed because the Plaintiff was getting on officer Brown's nerves.

65. The officers continued to exert pressure on the Plaintiff to find the keys to the room that was locked and to allow then to look into Plaintiff's closet and drawers.

66. Plaintiff's body began to shake in front of the officers in fear that the officers were going to harm Plaintiff if he did not give the officers the keys to unlock a room to allow the officers access so conduct a search.

67. Mr. Diallo unable to find his keys was then told by officer Brown that “ you’re going to jail”!

68. Officer Lobb ordered the Plaintiff to put his hands on the wall whereby officer Lobb began to search and frisk the Plaintiff without Plaintiff’s consent.

69. The officers, Brown and Lobb proceeded to place Mr. Diallo’s hands in handcuffs.

70. Mr. Diallo asked the officers if he could get his coat.

71. Officer Brown responded to Plaintiff’s request by telling Mr. Diallo that” you won’t need it because you’re going to spend the night in a cell”!

72. Officers Brown and Lobb proceeded to walk Mr. Diallo outside and placed him inside a police van.

73. Plaintiff sat in the van for several minutes after which officer Martin appeared on the scene.

74. Officer Martin allowed the officers to remove the handcuffs placed on the Plaintiff.

75. One of the Defendant police officers then handed Plaintiff a Summons bearing number 4442643178 which required Plaintiff to appear in Criminal Court to respond to charges alleging that the Plaintiff violated Administrative Code Section 26-521” Unlawful Eviction .

76. Mr. Diallo appeared in Criminal Court to answer to the false charges alleged by the arresting officers.

77. Mr. Diallo’s case was not on the Court’s calendar.

78. The Clerk at the Bronx Criminal Court informed Mr. Diallo that his case had been dismissed.

79. The officers then enter Plaintiff’s bedroom without consent and demanded that the Plaintiff give the officers keys to one of the rooms inside Mr. Diallo’s apartment.

80. The Defendant police officers knew or should have known that Mr. Diallo had obtained a Landlord and Tenant Judgment against Adama Cisse in the Bronx County Civil Court on September 19, 2029 issued by the Honorable Norma J. Jennings, Housing Court Judge which granted Mr. Diallo sole possession of the premises described as 16040 Grand Ave. Bronx, New York Apt. 1A

81. The Judgment issued by Judge Jennings ordered a Warrant of Eviction against Amama Cisse allowed the execution to take effect on October 31, 2019.

82. The officers had no legal right to enter Plaintiff's residence and to forced Mr. Diallo into giving the officers keys to a room secured inside Plaintiff's residence.

83. The officers entered Plaintiff's residence yelling and screaming at the Plaintiff, a law-abiding citizen who has never been arrested and has never come in contact with any members of the New York City Police Department.

84. The Defendant police offices Brown and Lobb entered Plaintiff's bedroom yelling and shouting at the Plaintiff to " find the keys"!

85. Mr. Diallo feared or his life and kept thinking that the officers were going to shoot him.

86. As the officers were inside Plaintiff's residence, Mr. Diallo attempted to show the officers a copy of the Judgment against Adama Cisse indicating that Mr. Cisse had no right to the preemies and that all his belonging let inside Plaintiff's apartment belonged by law to the Plaintiff as ordered by Judge Jennings.

87. Officers Brown and Lobb willfully and deliberately refused to allow Plaintiff to show them a copy of Judge Jennings's Court Order.

88. The officers Brown, Lobb and Martin were deliberately indifferent to Mr. Diallo's right not to be deprived of his liberty interest arising under the Fourteenth Amendment to the Constitution of the United States.

89. That officers Brown, Lobb, and Martin detained, arrested and seized the Plaintiff without probable cause to have reasonably believed that Mr. Diallo had in fact committed a crime.

90. Officers Brown and Lobb threatened and intimidated Plaintiff Diallo which frightened the Plaintiff and caused Mr. Diallo to allow the officers entry into his home and inside his bedroom.

91. Mr. Diallo, under threat of intimidation by the Defendant police officers Brown and Lobb, did not possess the requisite consent that authorized the officer's entry into Plaintiff's home.

92. That Mr. Diallo was not arraigned nor did he appear before a Judge..

93. That the officers lacked probable cause for Plaintiff's arrest.

94. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, restrained, and falsely accused Plaintiff of crimes for which the officers knew Plaintiff had not committed.

95. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by Defendant, police officers Brown, Lobb and Martin who were acting under color of law and within the scope of their employment.

96. That as a result of the false arrest and imprisonment of Plaintiff Thierno Diallo by officers Brown, Lobb and Martin, Plaintiff was caused to suffer emotional distress, trauma,

humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

97. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Diallo was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF THIerno DIALLO AGAINST DEFENDANTS, POLICE
OFFICERS BROWN, LOBB AND MARTIN FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983, AND UNDER ARTICLE
I SECTION 12, OF THE CONSTITUTION OF THE STATE OF NEW YORK**

98. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 97", with the same force and effect as though more fully set forth at length herein.

99. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers Brown, Lobb and Martin, were, and still are, members of the New York City Police Department believed to be assigned to the 46th police precinct in the Bronx, New York.

100. That at all time herein mentioned the Defendant, City of New York, maintained, operated and controlled the New York City Police Department within the City of New York.

101. That at all time hereinafter mentioned the City of New York, employed the officers in the instant action in the New York City Police Department.

102. That at all times hereinafter mentioned the Defendant police officers were employed by the Defendant City of New York, were servants, agents, and/or employees of the Defendant City of New York, and were acting within the scope of their employment.

103. That on or about November 1, 2019, at approximately 12:300 a.m., Plaintiff, was forced to allow officers Brown and Lobb inside his home under duress and threat of violence committed by the Defendant police officers.

104. Once inside Plaintiff's home, the Defendants yelled and screamed at the Plaintiff and ordered Mr. Diallo to give the officers keys to a room inside Plaintiff's home which was locked.

105. The officers entered Plaintiff's home without a warrant.

106. The Defendant officers entered Plaintiff's home without actual consent by the Plaintiff.

107. Mr. Diallo was placed in imminent threat and made to fear for his life by the actions of the Defendant police officers more fully described above..

108. That the Defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, searched, seized, imprisoned, detained, and restrained the Plaintiff.

109. That at all time herein mentioned, Mr. Diallo was unreasonably seized, detained, and imprisoned by the Defendants without probable cause, legal justification, or consent of the Plaintiff.

110. That at all times herein mentioned, Plaintiff, were falsely imprisoned, detained, restrained, harassed and humiliated by the Defendant police officers who were members of the New York City Police Department of the City of New York, and who were agents, servants and/or employees of the Defendant, City of New York, acting under and within the scope of their employment and under color of law at the time of the incident complained of herein.

111. That at all times herein mentioned, the Defendants intended to confine Plaintiff without privilege and without probable cause.

112. Plaintiff was conscious of his confinement and did not consent to such confinement.

113. That Defendants violated Plaintiffs' Fourth Amendment rights under the Constitution of the United States which guarantees Plaintiff's right to be secure in his persons, houses, papers and effects, against unreasonable searches and seizure.

114. That the manner in which the Defendant police officers entered Plaintiff's residence and attempted to force the Plaintiff to unlock a room inside Plaintiff's residence was objectively unreasonable in violation of the Fourth Amendment.

115. That the Defendant police officers as agents, servants and, or employees of the New York City Police Department, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized Thierno Diallo .

116. That as a result of the false imprisonment, detention, harassment, humiliation and embarrassment, Plaintiff Diallo was caused to suffer severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States and under Article I Section 12, of the Constitution of the State of New York.

117. That Plaintiff's arrest, false imprisonment and detention by the Defendant police officers constituted a malicious, wanton, and reckless act and degradation and deprivation of Mr. Diallo's liberty without due process of law.

118. That this action is brought pursuant to 42. U.S.C. Section 1983, which recognizes Plaintiff's right to seek legal redress and compensation for the Constitutional violations committed by the Defendants.

119. That as a direct, and proximate result of the acts, and omissions of the Defendants herein described, Mr. Diallo was caused to suffer great mental pain and agony, and emotional pain, anguish and suffering and harm.

120. That in the manner describes herein, the Defendants acted carelessly and recklessly with total disregard and with deliberate indifference to the constitutional rights of the Plaintiff.

121. That the Defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

122. That by reason of the foregoing Plaintiff Thierno Diallo has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
THIERNO DIALLO AGAINST DEFENDANTS, POLICE OFFICERS BROWN, LOBB
AND MARTIN, PURSUANT TO 42 U.S.C SECTION 1983 FOR VIOLATING
PLAINTIFFS' RIGHT TO BE FREE FROM UNREASONABLE SEARCH AND
SEIZURE.**

123. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "122," with the same force and effect as though more fully set forth at length herein.

124. Section 1983 states in relevant part that:

" Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress..." 42 U.S.C Section 1983,

125. Plaintiff's federal causes of action are brought against the Defendant police officers pursuant to 42 U.S.C. Section 1983, for violations Mr. Diallo's federal rights arising under the

Fourth and Fourteenth Amendments to the Constitution of the United States for the Defendant's unreasonable search and seizure of Plaintiff Diallo on November 1, 2019.

126. The Fourth Amendment to the Constitution of the United States that :

"The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized." U. S. Const. amend. IV.

127. Defendants Brown and Lobb violated Plaintiffs rights under the Fourth Amendment by holding the Plaintiff's captive in his residence without probable cause or legal justification as described more fully in the paragraphs set forth above.

128. The manner in which the Plaintiffs was held in custody unable to leave was objectively unreasonable under the circumstances as set forth herein.

129. Plaintiff was forced to look for his keys as ordered by the Defendant police officers to allow officers Brown and Lobb to unlock a door to a room owned and operated by the Plaintiff, without Plaintiff's consent.

130. The Plaintiff was placed under threat of use of force by the Defendant police officers who continued to yell and scream at the Plaintiff causing Plaintiff to fear for his life.

131. That police officers Brown and Lobb threatened to take Mr. Diallo to jail if Plaintiff did not give the officers the keys to his apartment.

132. Officers Brown and Lobb conducted an unlawful search inside Mr. Diallo's home without consent of the Plaintiff.

133. Plaintiffs was harassed, threatened and intimidated, assaulted, ridiculed and held against his will by the Defendant officers without reason or legal justification.

134. That the Defendants conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty by the Defendant police officers without due process of law.

135. In the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard of the Plaintiff's constitutional rights.

136. Mr. Diallo was deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

137. Plaintiff was also deprived of his right to be free and secured in his home and to free from false arrest and imprisonment, unreasonable search and seizure, without probable cause or legal justification.

138. Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated plaintiff's rights, privileges, and immunities thereof.

139. As a direct and proximate result of the conspiracy between the Defendant officers, Mr. Diallo was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

140. As a consequence thereof, Plaintiff, Thierno Diallo has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE CITY OF NEW YORK AND POLICE OFFICERS BROWN, LOBB
AND MARTIN PURSUANT TO 42 U.S.C SECTION 1983, FOR VIOLATING
PLAINTIFF'S RIGHTS PROTECTED UNDER THE DUE PROCESS CLAUSE OF
THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES**

141. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs “1 through “140”, with the same force and effect as though more fully set forth at length herein.

142. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs’ right to free from the depravation of liberty without due process of law.

143. That the Defendant Officers’ detainment and seizure of the Plaintiff inside Mr. Diallo’s residence and the manner in which officers Brown and Lobb who attempted to force the Plaintiff to open a room which Plaintiff had locked as described more fully in the proceedings paragraphs constituted a display of deliberated indifference to Plaintiff’s right to be free from the deprivation of liberty without due process of law..

144. As direct and proximate result of the Defendant officers’ conduct, Plaintiffs’ rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment pain, suffering, and mental anguish.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
THIERNO DIALLO AGAINST OFFICERS BROWN AND LOBB UNDER NEW YORK
STATE LAW FOR ASSAULT.**

145. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “144”, with the same force and effect as though more fully set forth at length herein

146. That the Defendants, police officers Brown and Lobb, without cause or justification, or the consent of the plaintiff, intentionally placed the Plaintiff in imminent fear of physical harm by the manner in which Defendants entered Plaintiff’s residence on November 1, 2019, and yelled and screamed at the Plaintiff in an blatant attempt to force Mr. Diallo to open a door

inside his home which was locked created an imminent threat of bodily harm towards the Plaintiff.

147. That by reason of the foregoing the Plaintiff, Thierno Diallo has unlawfully injured and seeks compensation against the Defendant officers for inflicting unnecessary pain, suffering, physical and emotional distress.

148. That the Defendant officers intentionally placed the Plaintiff in apprehension of fear and imminent harm and offensive contact by the Defendant officers' unlawful and unprivileged threat of force against the Plaintiff causing emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

149. That Plaintiff had reasonable apprehension of imminent harm due to Defendant police officers' offensive actions against the Plaintiff.

150. The Defendant police officers intentionally placed Plaintiff in reasonable fear of an imminent battery.

151. As direct and proximate result of the Defendant officers' conduct, Plaintiff, Thierno Diallo suffered humiliation, degradation, embarrassment pain, suffering, and mental anguish.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE DEFENDANTS, POLICE OFFICERS BROWN AND LOBB ON BEHALF OF THE PLAINTIFF UNDER NEW YORK STATE LAW FOR BATTERY.

152. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 151" with the same force and effect as though more fully set forth at length herein.

153. That on or about November 1, 2019, the Defendant officers without cause or justification, and without the consent of the Plaintiff, did wantonly, unlawfully, and intentionally engaged in unlawful physical contact which harmed the Plaintiff as described more fully above.

154. That as a result of the foregoing battery on the part of the Defendants, police officers Brown and Lobb, Mr. Diallo was caused to suffer emotional injuries.

155. That Mr. Diallo has suffered and will continue to suffer mental agony from the aforementioned events.

156. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and is hereby seeking compensation for his emotional pain and suffering which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR RESPONDEAT SUPERIOR
AGAINST THE CITY OF NEW YORK.**

157. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “156”, with the same force and effect as though more fully set forth at length herein.

158. That the City of New York hired and supervised Defendants police officers Brown and Lobb and Martin who entered Plaintiffs’ home without a warrant and seized the Plaintiff without probable cause and participated in his arrest, and prosecution..

159. That officers Brown and Lobb forced Mr. Diallo to allow entry into Plaintiff’s home without a warrant and without Plaintiff’s knowingly and willful consent.

160. That the Defendants Brown and Lobb grabbed Plaintiff’s hands and forced Mr. Diallo to place his hands behind his back while the officers placed handcuffs on his wrists without probable cause.

161. That the officers forced handcuffs on Mr. Diallo as a form of punishment and retaliation for not giving the officers consent to unlock a room inside Mr. Diallo’s residence.

162. That Judge Jennings issued a Judgment in favor of Plaintiff, Thierno Diallo granting Plaintiff possession to the premises which is the subject of this complaint.

163. That Adama Cisse was ordered to vacate and surrender possession of the premises to Mr. Diallo no later than October 31, 2019.

164. That Judge Jennings also included in her Order and Judgment that **“anything left in the apartment after Respondent vacates will be deemed abandoned and Petitioner may dispose of same without liability”**.

165. Mr. Cisse had no legal right to enter Mr. Diallo’s apartment on November 1, 2029.

166. Mr. Diallo did not refuse to unlock a door which Defendant’s Brown and Lobb had ordered the Plaintiff to open.

167. Plaintiff was placed under duress and extreme stress by the officer’s demeanor and threats when the officer engaged in unlawful conduct of yelling and screaming at the Plaintiff to find the keys and if Plaintiff did not find the keys the officers threatened to place Mr. Diallo under arrest.

168. That the Defendants committed the wrongs stated herein without probable cause, while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

169. As a result, the City of New is liable for the unlawful acts of their employee and subordinates, under respondeat superior.

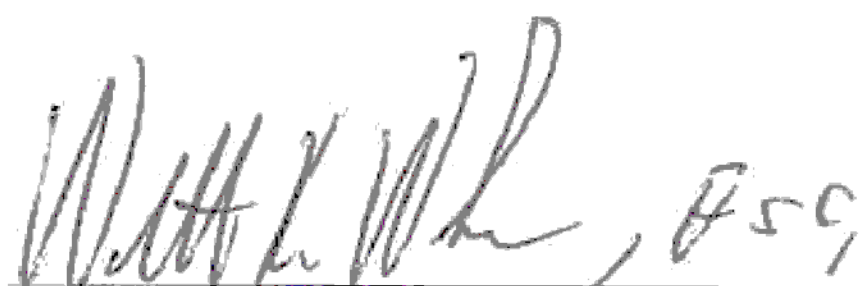
WHEREFORE, Plaintiff, Thierno Diallo respectfully request that this Court grant the following relief jointly and severally the Defendants:

- A. Compensatory damages in the amount to be determined by a jury at trial.
- B. Punitive damages against Police Officers, Brown, Lobb and Martin.

C. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.

D. Such other and further relief as the Court may deem just and proper.

Dated: August 30, 2020
Bronx, New York

By 
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